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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

JESSE KNABB,

Plaintiff,

v.

CITY OF HUNTINGTON BEACH; ORANGE COUNTY HEALTH CARE AGENCY (OCHCA); CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, SANTA ANA REGION 8 (RWQCB); EEC ENVIRONMENTAL; MERCY HOUSE LIVING CENTERS, INC; MITSURU YAMADA; DOES 1-100,

Defendants,

Case No.: 8:26-cv-00348-JWH-(ADSx)

VERIFIED COMPLAINT FOR:

1. **VIOLATIONS OF THE RESOURCE CONSERVATION AND RECOVERY ACT (RCRA), 42 U.S.C. §6972(A)(1)(B) (IMMINENT AND SUBSTANTIAL ENDANGERMENT);**
2. **VIOLATIONS OF RCRA, 42 U.S.C. § 6972(A)(1)(A) (ILLEGAL DISPOSAL);**
3. **VIOLATIONS OF TITLE VI OF THE CIVIL RIGHTS ACT, 42 U.S.C. § 2000d, AND ITS IMPLEMENTING REGULATIONS (DISPARATE IMPACT);**
4. **DECLARATORY AND INJUNCTIVE RELIEF.**

JURY TRIAL DEMANDED

VERIFIED COMPLAINT FOR VIOLATIONS OF THE RESOURCE CONSERVATION AND RECOVERY ACT (RCRA) AND TITLE VI OF THE CIVIL RIGHTS ACT

Plaintiff JESSE KNABB, in pro per, alleges as follows:

I. INTRODUCTION

1. This action is brought under the citizen-suit provisions of the Resource Conservation and Recovery Act ("RCRA"), 42 U.S.C. § 6972, and Title VI of the Civil Rights Act. Plaintiff seeks emergency and ongoing equitable relief—including injunctive relief, remediation, and court-supervised medical monitoring—to address ongoing releases and threatened releases of hazardous substances—including hexavalent chromium, lead, arsenic, and organochlorine pesticides—from the Huntington Beach Navigation Center ("HBNC"). These contaminants present an imminent and substantial endangerment to Plaintiff and to the remaining occupants still residing at the facility.

2. The Site's environmental clearance was not the product of lawful oversight. It was obtained through forged regulatory documents, the evasion of mandatory state jurisdiction, and the deliberate siting of a homeless shelter for a low-income, majority-disabled population on contaminated land. These acts constitute:

(a). an imminent and substantial endangerment under RCRA § 6972(a)(1)(B);

(b). illegal disposal and mismanagement of hazardous waste under RCRA § 6972(a)(1)(A); and

(c). unlawful intentional discrimination and deliberate indifference to the rights of a protected class under Title VI.

3. The Site contains hazardous substances at levels far exceeding health-protective standards. April 6, 2020 soil sampling revealed hexavalent chromium concentrations up to 820 µg/kg at Borehole B-6, along with elevated lead, arsenic, toxaphene, and 4,4'-DDE (Exhibit 1). Hexavalent chromium was consistently detected across both parcels—17631 Cameron Lane and 17642 Beach Boulevard—ranging from 200 µg/kg to 980 µg/kg from 0.5 to 8 feet below ground surface. Despite this contamination, Defendants accelerated the regulatory process to meet real-estate deadlines, bypassed mandatory Department of Toxic Substances Control ("DTSC") oversight, and submitted forged Remedial Action Supervision ("RAS") forms to manufacture the appearance of environmental clearance (Exhibit 23).

4. This misconduct was driven by financial pressure. The City of Huntington Beach faced the loss of a multi-million-dollar escrow deposit and the forfeiture of $6.1 million in Low-and-Moderate-Income Housing Asset Funds if environmental

clearance was not secured by May 31, 2020 (Exhibits 8, 37–38). To avoid these financial consequences, Defendants subordinated public health to expediency, resulting in the ongoing imminent and substantial endangerment at issue in this action.

II. JURISDICTION AND VENUE

5. This Court has subject-matter jurisdiction over this action under 28 U.S.C. § 1331 because Plaintiff's claims arise under the laws of the United States, including the Resource Conservation and Recovery Act ("RCRA"), 42 U.S.C. § 6901 et seq., and Title VI of the Civil Rights Act of 1964, 42 U.S.C. § 2000d et seq. RCRA's citizen-suit provision, 42 U.S.C. § 6972(a)(1)(A)–(B), expressly authorizes private parties to bring suit in federal district court against any person who is in violation of RCRA requirements or who has contributed or is contributing to the handling, storage, treatment, transportation, or disposal of solid or hazardous waste that may present an imminent and substantial endangerment to health or the environment. This Court has jurisdiction over Plaintiff's Title VI claim under 28 U.S.C. § 1331 because Title VI is a federal statute prohibiting discrimination on the basis of race, color, or national origin by programs or activities receiving federal financial assistance.

6. This Court also has supplemental jurisdiction over Plaintiff's related claims under 28 U.S.C. § 1367(a) because they form part of the same case or controversy as the federal questions presented. Venue is proper in the Central District of California under 28 U.S.C. § 1391(b)(2) because the contaminated Huntington Beach Navigation Center ("HBNC") Site is located within this District; a substantial part of the events and omissions giving rise to the claims occurred in this District; and multiple Defendants reside, maintain offices, or conduct business here.

III. RCRA NOTICE AND STATUTORY PREREQUISITES

7. On or about September 21, 2025, Plaintiff served written notice of the violations alleged in this Complaint, and of his intent to sue under RCRA, by certified mail, return receipt requested, on each Defendant named in this action, on the Administrator of the United States Environmental Protection Agency, and on the appropriate state environmental authorities, including the California Environmental Protection Agency and the Department of Toxic Substances Control. Copies of these notice letters are attached as Exhibit A and incorporated by reference. Plaintiff's notice letters described, with reasonable specificity, the location of the HBNC Site, the contaminants present, the nature of the alleged violations, the ongoing imminent and substantial endangerment to health and the environment, and the relief sought, in compliance with 42 U.S.C. § 6972(b) and 40 C.F.R. Part 254. More than ninety (90) days have elapsed since service of the

notice letters. Neither the United States Environmental Protection Agency nor the State of California has commenced and is diligently prosecuting a civil or criminal action in a court of the United States or a State to require compliance with RCRA or to abate the imminent and substantial endangerment alleged herein. No such action bars this citizen suit under 42 U.S.C. § 6972(b).

IV. STANDING AND INJURY

8. Plaintiff Jesse Knabb is a disabled former resident of the Huntington Beach Navigation Center, where he resided from approximately November 2022 through October 2024. During that time, Plaintiff lived, slept, and spent substantial daily time on the contaminated Site. The HBNC Site contains solid and hazardous wastes, including hexavalent chromium, lead, arsenic, and organochlorine pesticides, at concentrations far exceeding health-protective standards. These contaminants are present in Site soils and dust and are capable of migrating via stormwater, air, and subsurface pathways. Plaintiff's medical records document acute and chronic health conditions consistent with exposure to nephrotoxic and hematological toxicants, including pneumonitis, pleural effusion, renal impairment, sepsis, pneumonia, empyema, microcytic anemia, eosinophilia, and the need for thoracentesis. These injuries occurred during and

after Plaintiff's residency at HBNC and are consistent with exposure to the contaminants documented at the Site. Plaintiff faces an ongoing risk of latent and progressive disease, including cancer and organ damage, as a result of his past and continuing exposure to Site contaminants. The injunctive relief sought in this action—including lawful investigation, remediation, institutional controls, and medical monitoring—will reduce the risk of future harm and address the ongoing consequences of Defendants' conduct. Plaintiff therefore has standing to seek declaratory and injunctive relief under RCRA and Title VI.

V. PARTIES

9. **Plaintiff Jesse Knabb** is a disabled former resident of the Huntington Beach Navigation Center ("HBNC"), where he lived from November 2022 through October 2024. Plaintiff is a "person exposed" under RCRA who suffered measurable health injuries consistent with exposure to contaminants present at the Site. His medical records document acute and chronic symptoms associated with nephrotoxic and hematological toxicants, including hexavalent chromium, lead, and arsenic (Exhibit 11).

10. **Defendant City of Huntington Beach** is a municipal corporation that acquired, controlled, developed, and operated the HBNC Site. The City orchestrated and benefited from the fraudulent procurement of environmental clearance,

concealed known contamination, and continues to contribute to the conditions that present an imminent and substantial endangerment.

11. **Defendant Orange County Health Care Agency ("OCHCA")** is the local agency responsible for environmental oversight in Orange County. OCHCA knowingly bypassed mandatory referral to the Department of Toxic Substances Control ("DTSC") (Exhibit 6), issued a fraudulent "Case Closed" certification on August 21, 2020 (Exhibit 12), and approved substandard and scientifically unsupported remediation measures.

12. **Defendant California Regional Water Quality Control Board, Santa Ana Region 8 ("RWQCB")** is responsible for protecting regional water quality. RWQCB participated in circumventing DTSC oversight (Exhibit 6) and failed to enforce cleanup requirements.

13. **Defendant EEC Environmental ("EEC")** is an environmental consulting firm retained by the City. EEC prepared materially misleading Phase I and Phase II Environmental Site Assessments (Exhibits 15–18), facilitated the submission of forged and defective Remedial Action Supervision ("RAS") forms (Exhibit 23), and played a central role in the unlawful regulatory process that enabled the City to evade state oversight.

14. **Defendant Mercy House Living Centers, Inc.** operated the HBNC facility. Mercy House engaged in daily high-pressure washing of the Site's inadequate

asphalt cap, mobilizing contaminated soil and dust and contributing to ongoing releases and illegal disposal of hazardous substances.

15. **Defendant Mitsuru Yamada** is a co-Trustee of the selling trust and a former Assistant Subdivision Engineer for the Orange County Environmental Management Agency, the predecessor to OCHCA. In 1990, Yamada personally signed the permit authorizing the backfilling of the Site's cesspool, giving him direct knowledge of a significant subsurface hazard. Yamada concealed this information during the sale of the property to the City (Exhibit 23).

16. **Defendants DOES 1–100** are individuals and entities whose identities are presently unknown. Plaintiff will amend this Complaint to identify these Defendants when their names and roles become known.

VI. FACTUAL ALLEGATIONS

A. Historical Contamination and Site Conditions

17. Environmental testing conducted in April 2020 revealed hazardous substances at levels far exceeding California Human Health Screening Levels. Hexavalent chromium was detected at concentrations up to 820 µg/kg at Borehole B-6—approximately 2.5 to 3 times above health-protective thresholds—along with elevated lead, arsenic, toxaphene, and 4,4'-DDE (Exhibit 1). These contaminants

were consistently present across both parcels, with hexavalent chromium ranging from 200 µg/kg to 980 µg/kg between 0.5 and 8 feet below ground surface.

18. The Site's contamination risk is rooted in its long industrial history. A 1947 survey map documents the presence of an "Iron Tank" and Well W-4150 (State Well No. 05S/11W-25M09) on the property (Exhibit 3). The Cameron Lane parcel also carries a recorded easement for the Michael Drive storm drain, a major subsurface conduit installed in 1978–79 that has remained a significant municipal liability for decades.

19. Historical aerial photographs and EEC's Phase I Environmental Site Assessment confirm that the Site also had agricultural uses dating back to the 1930s, further contributing to the presence of persistent pesticides such as toxaphene and DDE.

B. Institutional Causation of the Toxic Sink

20. Historical records demonstrate that the City's Public Works Department possessed long-standing knowledge of the area's drainage deficiencies and contamination risks. The City's actions in 2020 were not the product of ignorance or mistake—they were the culmination of decades of institutional awareness.

21. Documents spanning 1978 to 1996 show the City's sustained involvement with the Michael Drive storm drain system and its chronic failures (Exhibit 46). This history establishes the City's pre-existing knowledge of the area's susceptibility to contamination and flooding.

22. In 1978 and 1979, the City contracted for and completed construction of the original Michael Drive Storm Drain (Project CC-435), filing a Notice of Completion that confirms the storm drain's alignment along Cameron Street (Exhibit 46). This project established the subsurface infrastructure that now intersects the contaminated zone.

23. By 1996, the City was still addressing maintenance bonds for the Michael Drive storm drain, demonstrating ongoing awareness of structural and hydraulic issues (Exhibit 46).

24. The same Public Works Department that managed these drainage liabilities for over 30 years played a central role in the 2020 HBNC project. The City therefore had full institutional knowledge of the storm drain's condition, the area's flood history, and the contamination risks associated with both (Exhibit 46).

C. Connecting Policy Failure to Toxic Contamination (1991–1995)

25. The historical record establishes that the City's own policy failures were the proximate cause of the contamination discovered in 2020.

26. In 1991, the City approved funding for major stormwater improvements intended to address chronic flooding in the Michael Drive/Cameron Lane basin. The City failed to construct these improvements for more than four years, leaving the area vulnerable to stormwater surges.

27. In 1995, a severe winter storm caused extensive flooding throughout the area. This flood acted as the transport mechanism that deposited mixed industrial contaminants (hexavalent chromium, lead, arsenic) and agricultural pesticides (toxaphene, DDE) onto the HBNC Site. The City's failure to complete the 1991 improvements directly enabled the Site to become a "toxic sink."

D. The Easement

28. The City's long-standing knowledge of the storm drain easement—which runs directly through the parcel historically known as 17631 Cameron Lane—further demonstrates intentional concealment of the parcel's identity and associated liabilities (Exhibit 47).

29. The easement forms a permanent legal and physical connection between the Cameron Lane parcel and the City's Public Works Department. This connection underscores the City's awareness of subsurface hazards and its responsibility for the storm drain's condition (Exhibit 47).

E. Subterranean Infrastructure and Fraud: Permanent Subterranean Construction Contradicting "Temporary" Claims.

30. Upon information and belief, in 2020, as part of developing the Huntington Beach Navigation Center ("HBNC" or "the Site"), Defendants designed and installed a comprehensive, permanent subterranean stormwater detention system. This system included the burial of approximately 2,247 cubic feet of high-density polyethylene (HDPE) Stormtech storage chambers, along with extensive associated PVC piping, constituting a major, permanent physical alteration of the Site.

31. Critical engineering documents, including the Hydrology and Hydraulics Analysis by Michael Baker International (August 2020) formally accepted by the City's Public Works Department, and the incorporated AESCO Geotechnical Report, specified a 10-year design life for the Site's pavement and infrastructure. This engineering standard is fundamentally inconsistent with a temporary or emergency 90-day shelter and demonstrates that from inception, the project was intended as a permanent facility.

F. Fraudulent Use of Regulatory Exemptions Based on False Pretenses.

32. Despite the permanent nature of the construction, Defendants, including the CITY OF HUNTINGTON BEACH, knowingly and willfully sought and obtained regulatory exemptions by falsely representing the project as

"temporary." Specifically, on or about August 19, 2020, Defendants applied for and received an Erosivity Waiver (No. 8 30W004769) from the State Water Resources Control Board's Storm Water Construction General Permit.

33. This waiver, which allowed construction to proceed without full stormwater permit coverage, was expressly predicated on the representation that construction activity would occur within a limited period (August 19 to November 18, 2020) during which the rainfall erosivity factor ("R factor") was less than five. Defendants obtained this waiver while simultaneously possessing and approving final engineering plans for the permanent Stormtech detention system described above.

34. The use of a short-term erosivity waiver to facilitate the installation of permanent, decades-lasting subsurface infrastructure constitutes a deliberate and fraudulent evasion of mandatory permitting and environmental review processes under the Clean Water Act and California law.

G. Creation of an Imminent and Substantial Endangerment.

35. The fraudulent installation of this permanent infrastructure was executed with reckless disregard for known site hazards. The AESCO Geotechnical Report, incorporated into the project design, documented that the Site's soil is **"very corrosive"** (pH 8.7, 210 ppm chlorides) and contaminated with hazardous substances, including hexavalent chromium and lead. By designing and burying

corrosion-susceptible HDPE and PVC infrastructure within this hostile and contaminated matrix, Defendants actively created a condition where the failure of the subsurface system is accelerated. This failed infrastructure is integral to the Site's intended "cap function," meant to isolate contaminants.

36. Its eventual corrosion and structural failure pose a direct threat of sinkholes, upward migration of toxic soil gases, and the mobilization of hazardous waste through the storm drain system, presenting an imminent and substantial endangerment to health and the environment. Defendants' conscious choice to proceed with this design, while concealing the permanent nature of the work through regulatory fraud, exemplifies the knowing contribution to an ongoing endangerment.

H. Fraudulent Initiation of Environmental Oversight

37. The City executed a Grant Deed for 17631 Cameron Lane on April 3, 2020, but intentionally delayed its acceptance until August 14, 2020, and its recording until August 19, 2020 (Exhibit 9). During this 4.5-month period, the City lacked legal ownership and therefore lacked authority to initiate environmental oversight or submit regulatory documents.

38. Despite lacking ownership, the City submitted two Remedial Action Supervision ("RAS") forms to OCHCA on April 27, 2020: one for 17631 Cameron Lane and another combining that parcel with 17642 Beach Boulevard.

The combined form was undated, listed incorrect Assessor's Parcel Numbers, lacked the City Manager's signature, and contained inconsistent signatures—including a DocuSign system-font signature and a pasted image signature (Exhibit 23).

39. The signature purporting to be that of former owner Mitsuru Yamada was not authentic, and the signature for the "Person Responsible for Cleanup" was attributed to George Felix of CBRE, who had no authority to execute such documents. These defects render the RAS submissions unauthorized and *void ab initio.*

40. Both RAS forms contained incorrect APNs for the parcels (Exhibit 5), further undermining their validity.

41. The City and OCHCA jointly engaged in a scheme to evade mandatory DTSC oversight. Knowing that contamination on the Cameron Lane parcel exceeded DTSC thresholds, they combined it with the adjacent Beach Boulevard parcel on a single RAS form. In December 2020, the City claimed they eliminated the 17631 Cameron Lane address entirely, reclassifying both parcels as 17642 Beach Boulevard. The USPS still formally recognizes 17631 Cameron Lane as a physical and mailing address. This claim of artificial consolidation diluted contamination levels, created a false administrative record, and enabled

OCHCA—an agency lacking DTSC's statutory authority—to issue ultra vires "Case Closed" certification.

I. Systematic Circumvention of Mandatory State Oversight

42. California law—specifically SB 1248—requires mandatory referral to the Department of Toxic Substances Control ("DTSC") for sites containing hazardous substances above specified thresholds, including the hexavalent chromium exceedances present at the HBNC Site. Despite this requirement, on April 30, 2020, OCHCA and the Regional Water Quality Control Board ("RWQCB") jointly decided to bypass DTSC referral by falsely characterizing the cleanup as a "simple waste cleanup" under SB 1248 (Exhibit 6). This decision was made with full knowledge that the Site's contamination levels triggered DTSC jurisdiction.

43. On July 7, 2020, OCHCA Project Manager Tamera Escobedo instructed the City to unify multiple parcels on revised RAS forms to avoid parcel-specific DTSC review (Exhibit 5). This directive deliberately obscured contamination patterns and prevented the parcel-level scrutiny required under state law.

44. EEC prepared a materially misleading Phase I Environmental Site Assessment that understated Site risks by asserting there was "no visual evidence" of storage tanks despite historical documentation to the contrary. EEC also excluded lead-

based paint and asbestos from the testing scope, omitting known contamination pathways (Exhibits 15–18).

45. Public records obtained through the California Public Records Act ("CPRA") reveal improper coordination between OCHCA staff and EEC. Emails show OCHCA directing EEC to draft and revise RAS forms and closure documents before the City submitted them, and recommending cleanup goals outside OCHCA's statutory authority (Exhibits 34–36). This coordination demonstrates that OCHCA was not acting as an independent regulator but as a collaborator in the City's effort to evade DTSC oversight.

J. Documentary Irregularities and Inconsistent Reporting

46. Documents produced by EEC include a May 13, 2020 email chain purporting to transmit laboratory results from Eurofins Calscience LLC. The email references a report and electronic data deliverables, yet no such attachments were ever produced (Exhibit 41). This omission raises serious questions about the authenticity and completeness of the data relied upon for Site closure.

47. The Eurofins analysis reports submitted by EEC contain multiple internal inconsistencies, including conflicting analyte naming conventions, inconsistent use of "ND" versus "No Detections," irregular table structures, mismatched

timestamps, and varying levels of narrative detail. These discrepancies undermine the reliability of the laboratory data used to justify Site closure.

48. The geophysical report attributed to Subsurface Surveys, Inc. ("SSS") and dated April 13, 2020 contains no raw ground-penetrating radar data, no field logs, no operator identification, no date of fieldwork, and no instrument settings (Exhibit 42).

49. The absence of these required elements prevents verification of whether the survey was conducted at all or whether the report was altered. The report also states the fieldwork measurements and GPR were performed at 17631 Cameron Lane. EEC and OCHCA stated these were performed at 17642 Beach Boulevard. Photos taken on the morning of August 20, 2020 show vegetation still present in the southern portion of 17642 Beach Boulevard.

50. This is inconsistent with professional standards of vegetation clearance before marking and labeling of boring locations prior to subsurface sampling, borings from hand-auger methodology used for soil sampling, or drilling of borings for soil sampling up to 15 feet below ground surface.

K. Invalidated Laboratory Results

51. Raw data from Eurofins Calscience shows pervasive Matrix Spike/Matrix Spike Duplicate (MS/MSD) failures, designated by the F1 qualifier, for hexavalent

chromium and lead. The laboratory explicitly flagged these results as unreliable due to sample matrix interference. Despite these warnings, OCHCA used this scientifically invalid data to establish remediation boundaries and to certify Site closure.

L. Administrative Regulation 202 (AR 202) Violations

52. The City violated its own Administrative Regulation 202 ("AR 202"), which requires a four- to five-month review process for Planning Commission items. The HBNC project description omitted historical contamination data and concealed the de facto permanent nature of the project—facts that would have triggered a mandatory Environmental Impact Report ("EIR") under AR 202.

M. Municipal Grading Code Violations

53. The City violated Huntington Beach Municipal Code § 17.05.170(B) by issuing a grading permit for land subject to a known geological hazard. The City approved the permit despite knowing that the corrective measure used—the thin asphalt cap—was insufficient to mitigate the hazard.

N. Fabricated Fieldwork and Fraudulent Well-Search Narrative

54. On August 20, 2020, EEC Principal Geologist David Bernier emailed OCHCA claiming that his field crew spent "six hours cutting out ice plants, probing, and digging" in the southeast corner of the Beach Boulevard parcel to locate the abandoned well/cesspool (W-4150). This claim is physically refuted by photographic evidence taken after general site grading began. The photographs show the critical area covered in intact, undisturbed agave plants. A six-hour excavation of dense vegetation would have left unmistakable signs of disturbance, including uprooted plants and freshly excavated soil.

55. Relying solely on Bernier's unverified claim, OCHCA Program Manager Anthony Martinez issued an illegal waiver of the mandatory well-destruction permit on August 21, 2020, stating: "I don't believe a well destruction permit is necessary at this time."

56. On the morning OCHCA issued the "Case Closed" certification, Bernier emailed EEC staff asking, "Did the geophy company do a report?" (Exhibit 43). This question—posed after he had already certified remediation of subsurface anomalies—demonstrates that the narrative of fieldwork was fabricated retroactively.

57. Bernier certified the remediation of an 8' x 7' x 2' excavation before reviewing any data identifying the location of the anomalies, confirming that the certification was not based on actual field conditions.

58. This evidence establishes institutional scienter: EEC submitted a fraudulent fieldwork narrative to secure a regulatory waiver, and OCHCA knowingly relied on false documentation to issue the final closure certificate (Case No. 20IC002).

59. Forgery and fraud are grounds for vacatur. Under California Penal Code § 115(e)(1), a court may adjudge a forged or false instrument void ab initio upon a finding of its fraudulent nature.

O. Misrepresentation and Mislocation of Well W-4150

60. The subject property was originally a single tract—the north half of Lot 9, Tract 405 (Exhibit 48). The well W-4150 was drilled in the 1930s, decades before the modern parcel boundaries existed.

61. The land was not formally divided until November 1968, when the COMPAR partnership filed Application DV 68-45, creating the two parcels that exist today: one fronting Beach Boulevard and one fronting Cameron Lane (Exhibit 48).

P. Summary of Address Obfuscation for 17631 Cameron Lane

62. In December 2020, the City eliminated the 17631 Cameron Lane address, consolidating both parcels under the single address of 17642 Beach Boulevard. This administrative maneuver concealed the well's historical location and facilitated regulatory evasion.

63. Municipal "Elimination" vs. Federal Recognition: In December 2020, the Huntington Beach City Council formally acted to "eliminate" the 17631 Cameron Lane address, consolidating the site under the primary address of 17642 Beach Boulevard. However, forensic validation reveals that the United States Postal Service (USPS) still recognizes 17631 Cameron Lane as an active, valid delivery point with its own unique ZIP+4 code (92647-6919) and carrier route.

64. The "Shadow Record" System: This administrative maneuver created a "shadow" record system where the City's internal databases (GIS and dispatch) reflect a single address, while federal records maintain the parcel's distinct identity. This duality frustrates public records requests and code enforcement by allowing the City to claim the location "does not exist" in its portal, despite the physical presence of the underlying land and its liabilities.

65. Regulatory Evasion and Contamination Dilution: The primary purpose of this consolidation was to bypass mandatory Department of Toxic Substances Control (DTSC) oversight. By combining the highly contaminated Cameron Lane parcel

with the adjacent Beach Boulevard parcel on a single Remedial Action Supervision (RAS) form, the City artificially diluted contamination levels. This enabled the Orange County Health Care Agency (OCHCA)—which lacks the statutory authority of the DTSC for such sites—to issue ultra vires "Case Closed" certification.

66. Concealment of Subsurface Hazards: The obfuscation effectively hid the historical location of Well W-4150 (an abandoned well/cesspool) and a significant storm drain easement that runs directly through the Cameron Lane parcel. These subsurface hazards are critical to the "toxic sink" conditions alleged in the complaint, as they represent major conduits and sources for the hexavalent chromium, lead, and arsenic plumes on-site.

Q. Debris Clearance Fraud

67. On July 22, 2020, OCHCA's Tamera Escobedo emailed colleagues stating that she observed "two small pothole excavations" and that "buried debris was not observed" and "no additional sampling was required" (Exhibit 44).

68. However, in the Final Site Summary and Recommendations Letter dated August 21, 2020, Escobedo claimed that excavations measuring approximately 8 ft x 7 ft x 2 ft uncovered a buried metal fence post, an old sewer pipe, and additional

metal debris (Exhibit 12). This account directly contradicts her earlier statement that no debris was observed.

69. EEC's "Additional Site Assessment" report similarly asserts that two areas of buried metal debris were excavated using a mini-excavator and shovel, and that debris including metal fragments, glass shards, and PVC piping was unearthed (Exhibit 45). This narrative is inconsistent with Escobedo's contemporaneous email stating that no debris was found.

70. These contradictions demonstrate that the debris-clearance narrative was fabricated to justify the issuance of the "Case Closed" certification.

R. Flawed Search and Mislocation Allegations

71. Because Well W-4150 predates the 1968 parcel split by decades, any search conducted using the modern 17642 Beach Boulevard boundaries or APN is inherently misaligned with the well's historical location. Defendants exploited this discrepancy to bypass environmental regulations.

72. EEC and OCHCA repeatedly shifted the well between parcels, assigned incorrect APNs, and issued directional descriptions that contradict historical maps, Department of Water Resources ("DWR") records, and site photographs. By treating the well as if it were located on a different parcel—or on the "eliminated" Cameron Lane parcel—Defendants avoided mandatory DTSC

involvement and the stricter well-abandonment requirements of the Orange County Well Ordinance.

S. Geophysical Survey Fraud

73. An analysis of images included in the Index of exhibits, coupled with the "Geophysical Survey Report" (Appendix A) and the "Site Assessment Report Addendum" (August 11, 2020), identifies critical physical and chronological contradictions that support the conclusion regarding data fabrication or systematic misrepresentation. The evidence of fabrication is categorized into three primary technical discrepancies:

74. **The Ground Cover and Marking Contradiction:** SubSurface Surveys (SSS) explicitly stated in their report that the findings were "marked on the ground cover with spray marking paint" and that each borehole was marked with a "white circle... and a yellow SSS".

75. **Physical Impossibility: Image 2** shows the "ground cover" consists of dense ice plant and vegetation. It is physically impossible to spray a "white circle" or a legible "yellow SSS" onto loose, flowering foliage in a way that would remain visible for a surveyor or driller.

76. **The "Superimposed" Graphics:** The Site Interpretation Map (Figure 3) depicts utilities as perfectly rendered, color-coded broken lines. While

consultants often digitize field marks, the observation of superimposed graphics is reinforced by the fact that the "Proposed Borehole" labels for B-19A and B22-A appear on a survey grid explicitly titled and indexed for 17631 Cameron Ln, yet these borings are physically located on the Beach parcel.

77. **Vegetation Status:** The EEC Addendum Report claims that on July 22, 2020, they used an excavator to "remove the vegetation" along the south boundary to search for buried debris identified by the survey. However, Image 1 (Juan Anzora, 08/20/2020) shows the south portion of the parcel still heavily covered in undisturbed agave plants and vegetation just one day before the "Case Closed" letter was issued. This suggests the claimed excavation and vegetation clearing never occurred.

78. The Absence of Forensic Evidence in "Proof" Photos:

Anthony Martinez (OCHCA) stated in the final Site Summary that although the address on the geophysical report was "erroneous," the "photographs 1 through 10 show the survey was conducted on the property at 17642 Beach Boulevard". A technical review of those photos (Figures 4-13 in Appendix A) reveals a total absence of:

(i) **Geophysical Equipment:** There are no sightings of the Geonics EM61 (a large tow-behind or hand-carried sled), the Noggin GPR unit, or the magnetometers mentioned in the report.

(ii) **Personnel:** No staff geophysicists (Bret Herman or Travis Crosby) are visible in any "action" shots performing the survey.

(iii) **Field Markings:** The photos typically show general site views but fail to show the "white circles" or "yellow SSS" paint marks on the ground that the report claims were the primary method of delivery.

79. **Chronological "Pre-cognition" of Boring Locations:** The geophysical survey was conducted on **April 13, 2020**, and the report was finalized on **April 27, 2020**.

80. **The Anomaly:** The SSS Interpretation Map (Figure 3) includes "Proposed Boreholes" for B-19A and B22-A.

81. **The Contradiction:** EEC did not even propose these "A" step-out borings until **after** the initial results from the April 14 sampling event showed Cr(VI) and lead exceedances.

82. **The Conclusion:** A geophysical report finalized in April could not have "proposed" boring locations that were only conceptualized in May as a reaction to contamination findings. This indicates the map was retroactively altered and superimposed with Beach-parcel data to create a "record" of a survey that was never performed for that specific property. The presence of dense vegetation in the August 20 photos (Image 1) and the "ground cover" shown in Image 2 directly contradicts the laboratory and consultant narratives of cleared ground

and spray-painted markings. These visual facts, combined with the mislabeled Cameron Lane report and the retroactive placement of borings on the map, provide a strong forensic basis for the claim that the geophysical survey for the 17642 Beach Blvd parcel was administratively manufactured using data from the north parcel.

83. OCHCA accepted this unverifiable documentation and waived the mandatory well-destruction permit, leaving an unsealed subsurface conduit in place. This unsealed pathway presents a continuing risk that hexavalent chromium and other contaminants may migrate into the shallow groundwater aquifer.

84. The status of Well W-4150 remains a critical "red flag" because its location was verified against the modern parcel configuration rather than its historical 1930s context. By the time the City issued its "Case Closed" certification in August 2020, the well had been administratively mislocated, shielding it from the rigorous state oversight that a deep subsurface hazard would ordinarily trigger.

85. Well W-4150—the only documented well on the Cameron Lane parcel—was repeatedly misrepresented by the agencies and consultants responsible for oversight. EEC and OCHCA documents shift the well between parcels, assign incorrect APNs, and provide directional descriptions that contradict historical maps, Department of Water Resources ("DWR") records, and contemporaneous site photographs (Exhibits 3, 7, 22).

86. This mislocation was never corrected, despite the agencies possessing photographs, field notes, and historical documents clearly showing the well's true location in the southeast corner of 17631 Cameron Lane.

T. Emergency Facility Use Agreement and Ownership Misrepresentation

87. The April 20, 2020 Emergency Facility Use Agreement between the County of Orange and the City of Huntington Beach reveals serious procedural and factual inconsistencies. The agreement confirms that the City committed to the HBNC project before it possessed recorded legal title and before it initiated valid environmental oversight (Exhibit 40).

88. In seeking City Council approval, the City represented 17631 Cameron Lane as "City property" ready for shelter construction, despite holding only an unrecorded Grant Deed. The City did not formally accept the deed until August 14, 2020 and did not record it until August 19, 2020 (Exhibit 9).

89. By representing the Site as City-owned while intentionally delaying recordation for 4.5 months, the City created a legal vacuum that allowed it to avoid immediate environmental liability while simultaneously inducing County action.

U. Scienter: Knowledge of Contamination Prior to Agreement

90. Internal records show that the City Manager's office possessed the April 6, 2020 Eurofins laboratory data—including the 820 µg/kg hexavalent chromium exceedance at Borehole B-6—before signing the April 20 Emergency Facility Use Agreement.

91. Despite this knowledge, the "Request for City Council Action" signed by City Manager Oliver Chi on April 20, 2020 described the Site as a "safe location" for vulnerable populations to isolate. Representing a contaminated parcel as "safe" while in possession of data showing severe hazardous exceedances establishes scienter—an intent to deceive.

V. Financial Motive Driving Regulatory Misconduct

92. Email correspondence between City and OCHCA staff demonstrates that real-estate deadlines dictated and compromised the environmental review process (Exhibit 37).

93. In an April 22, 2020 email, the City's Director of Community Development wrote: "I need the site closure letter before May 31st, 2020, to avoid losing their deposit while in escrow for the Cameron Lane parcel" (Exhibit 38).

94. The City's deposit would become non-refundable if the due-diligence period—extended to May 21, 2020—was missed, forcing immediate closure of escrow by May 30, 2020. This financial pressure created a powerful incentive to subordinate environmental and public-health mandates to a politically expedient timeline.

95. The City demanded that OCHCA issue a closure letter by May 31—an impossibly short timeframe for legitimate cleanup of severe hazardous waste—coercing OCHCA to act ultra vires by approving a substandard asphalt cap and falsifying the public record.

W. OCHCA's Warning Letter to the City

96. In August 2022, while serving as the lead regulatory agency for the contaminated HBNC (Case #20IC002), OCHCA submitted official comment letters on the City's Housing Element Update.

97. These letters demonstrate that OCHCA possessed contemporaneous knowledge of critical environmental oversight principles—specifically warning that a change in land use could nullify prior "No Further Action" cleanup determinations and emphasizing the need for rigorous, multi-agency review for other development sites.

98. Despite this knowledge and its active oversight role at the HBNC, OCHCA conspicuously omitted any reference to the known, severe contamination at the

shelter in its comments. The City, in turn, systematically dismissed OCHCA's environmental warnings in its official responses, stating they did not raise substantive issues, thereby revealing a coordinated pattern of concealing hazards and evading mandatory review for the HBNC project (Exhibit 51).

99. This conduct directly supports the core legal claims in the Complaint. For the RCRA "imminent endangerment" claim, it establishes that both OCHCA and the City had actual knowledge of the contamination and the regulatory triggers that should have prompted re-evaluation, yet chose concealment over action, allowing a vulnerable population to remain exposed. For the Title VI claim, it evidences selective and discriminatory enforcement: OCHCA demanded comprehensive oversight and mitigation for landfill risks affecting future market-rate housing, but provided none of those protections for the predominantly low-income and disabled residents of the HBNC. Collectively, these acts and omissions form a pattern of fraudulent misrepresentation by omission, demonstrating knowledge, intent, and a conscious disregard for health and safety that perpetuated the ongoing endangerment.

X. 2023 Zoning Change and Automatic Nullification of Environmental Closure

100. On April 4, 2023, the Huntington Beach City Council enacted Ordinance No. 4289 (ZMA 22-002) and Resolution No. 2023-13 (ZTA 22-009), applying an Affordable Housing Overlay ("AHO") to the Site with a density of 70 units per acre. This action transformed the Site's designated use from interim shelter to high-density residential.

101. OCHCA explicitly stated in 2022 that "No Further Action" letters are use-specific and that any change in land use nullifies such letters and requires reevaluation (Exhibit 32). The 2023 rezoning therefore automatically nullified the August 21, 2020 "Case Closed" certification (IC Case No. 20IC002), which was predicated solely on temporary shelter use with an asphalt cap.

102. By enacting the AHO, the City triggered the very condition OCHCA identified as nullifying the closure. Continuing to operate the shelter or plan for housing based on a nullified certificate constitutes knowing endangerment under RCRA.

Y. Ultra Vires Nature of the 2020 Closure

103. The 2020 closure was ultra vires because OCHCA lacked jurisdiction. California Health & Safety Code § 101480 and SB 1248 mandate referral to DTSC for complex hazardous waste sites. With hexavalent chromium at up to

49 times safety limits, along with lead, arsenic, and pesticides, the Site required DTSC oversight. OCHCA unlawfully retained authority to meet the City's escrow deadline.

104. OCHCA's retention of jurisdiction constitutes an *ultra vires act*—an attempted exercise of power specifically withheld by statute. The Supreme Court's decision in Leedom v. Kyne establishes that such actions are void.

105. Because the hazardous waste at the HBNC Site was "of a sufficiently complex nature" and presented a "significant potential hazard," OCHCA's enabling statute required withdrawal and referral to DTSC. By issuing a closure letter to meet the City's May 2020 deadline, OCHCA acted outside its statutory authority.

Z. Forensic Manipulation of Records

106. Email correspondence reveals that OCHCA management actively directed the falsification of the public record to ensure the "Case Closed" certification was issued by the required deadline.

AA. The "Clean Up" Command

107. On August 21, 2020—the day the closure was issued—OCHCA Project Manager Anthony Martinez instructed staff to "clean up the file name" before

sending final documents to regulators, indicating deliberate manipulation of official records.

BB. Digital Disappearance

108. OCHCA personnel manually removed specific detections of hexavalent chromium and lead from the public GeoTracker database, replacing them with the generic term "NONE SPECIFIED" to prevent automated red-flagging by state monitoring systems.

CC. Void Ab Initio Nature of the 2020 Closure

109. The closure is void ab initio due to a mandatory procedural failure. Health & Safety Code § 101480(j)(1) requires a 30-day public notification period before certifying cleanup goals. OCHCA issued the "Case Closed" certificate on August 21, 2020 without any public notice, denying stakeholders the opportunity to challenge the fraudulent investigation.

DD. Inadequate Remediation and Ongoing Endangerment

110. On August 19, 2020—the day the deed was recorded—the City demolished a 1947 lead-paint residence on the Site without required Title X abatement, dispersing contaminated debris (Exhibits 2, 9, 18).

111. The City placed only a two-inch asphalt cap over contaminated soil, a measure grossly inadequate to prevent exposure. Mercy House's daily high-pressure washing strips the asphalt binder and mobilizes contaminants (Exhibits 30–31).

112. Prior to occupancy, the City removed posted warning signs regarding pesticides, lead, and hexavalent chromium that had been visible in August 2020 (Exhibits 1–2).

EE. Perpetuation of Imminent and Substantial Endangerment

113. The administrative failures described above—including fraudulent closure, ultra vires action, and zoning-triggered nullification—directly enable a continuing imminent and substantial endangerment from hazardous waste, causing documented injuries to Plaintiff and ongoing exposure to Site residents.

FF. Intentional Discrimination and Disparate Treatment

114. Defendants are recipients of federal and state financial assistance, including CARES Act funds used to acquire and operate the HBNC facility (Exhibits 8, 24–25). The HBNC population is overwhelmingly BIPOC, low-income, and disabled, placing it squarely within the protected classes Title VI was enacted to safeguard.

115. Despite this demographic reality, RWQCB staff explicitly asserted that the Site was not located in a "disadvantaged community" under SB 535, thereby denying the enhanced environmental protections and heightened scrutiny that would ordinarily apply to vulnerable populations (Exhibit 20). RWQCB made this assertion with full knowledge of the Site's demographics and environmental hazards and chose to disregard the foreseeable disparate harms to HBNC residents.

116. Defendants' decision to site a homeless shelter for a predominantly BIPOC, low-income, and disabled population on a known contaminated parcel, while concealing the hazards and falsifying environmental records, was not neutral. It was taken with knowledge of who would bear the risks and with deliberate indifference to, and acceptance of, those risks for this protected population, even as more protective measures were afforded to non-shelter, non-BIPOC, non-majority disabled populations.

117. The City's discriminatory treatment is further demonstrated by its starkly unequal allocation of environmental protections. The City spent over $5,000,000 to protect City Hall employees and stakeholders from subsurface hazards under full DTSC oversight for more than sixteen years, while providing HBNC residents with only a $128,000 two-inch asphalt cap and waiving critical protections (Exhibits 8, 32–33, 37). This disparity constitutes environmental

racism and demonstrates intentional discrimination and deliberate indifference to the health and safety of a protected population.

GG. RWQCB's Failure to Maintain Integrity of State Environmental Records

118. **Duplicate GeoTracker IDs:** The Regional Water Quality Control Board maintained two separate GeoTracker Global IDs for the same project site (20IC002), enabling the City to submit a sanitized "clean" alias file to housing authorities while burying high-hazard data in a secondary file (Exhibits 49 and 50). This dual-file system undermined the integrity of the state's environmental database and facilitated concealment of contamination.

119. **Permit Enforcement Failure:** The Water Board failed to detect or enforce the City's expired CIWQS drainage permits (lapsed as of August 2020), despite being placed on official notice of illegal runoff risks involving hexavalent chromium and lead at the HBNC Site. This failure allowed contaminated stormwater to continue discharging without regulatory oversight.

HH. Injury to Plaintiff

120. Plaintiff resided at the HBNC facility from November 2022 to October 2024. His medical records document acute and chronic health effects consistent with exposure to nephrotoxic and hematological contaminants present at the Site,

including pneumonitis, pleural effusion, renal impairment, sepsis, pneumonia, empyema, microcytic anemia, eosinophilia, and the need for thoracentesis (Exhibit 11). These injuries are consistent with exposure to hexavalent chromium, lead, arsenic, and related toxicants documented in Site soils.

VII. CLAIMS FOR RELIEF

COUNT I: Violation of RCRA – Imminent and Substantial Endangerment (42 U.S.C. § 6972(a)(1)(B))

121. Plaintiff incorporates paragraphs 1–120 as if fully set forth herein.

122. Defendants have contributed to, and continue to contribute to, the handling, storage, treatment, transportation, and disposal of hazardous waste at the HBNC Site within the meaning of 42 U.S.C. § 6972(a)(1)(B). Their contributions are distinct by role and function, including, but not limited to:

A. City of Huntington Beach: By

(i) acquiring and developing the contaminated Site for use as a homeless navigation center;

(ii) directing and approving grading, demolition, and construction activities on contaminated soil;

(iii) authorizing and maintaining an inadequate two-inch asphalt cap as the sole barrier over hazardous waste;

(iv) demolishing a 1947 lead-paint structure without Title X abatement;

(v) continuing to operate HBNC after learning of hexavalent chromium, lead, arsenic, and pesticide exceedances; and

(vi) proceeding with a 2023 high-density residential rezoning while relying on a nullified closure letter, the City has actively managed and controlled the conditions under which hazardous wastes are handled, stored, and disposed.

B. Orange County Health Care Agency (OCHCA): By

(i) assuming primary regulatory oversight of a complex hazardous waste site despite mandatory DTSC jurisdiction;

(ii) approving substandard remedial measures, including the thin asphalt cap, as a purportedly protective remedy;

(iii) issuing the August 21, 2020 "Case Closed" letter without lawful notice and based on incomplete and invalid laboratory and geophysical data; and

(iv) waiving well-destruction requirements for Well W-4150, OCHCA has enabled and perpetuated the unsafe handling and disposal of hazardous waste at the Site.

C. Regional Water Quality Control Board, Santa Ana Region 8 (RWQCB): By

(i) collaborating with OCHCA to characterize the cleanup as a "simple waste cleanup" to avoid DTSC referral;

(ii) maintaining duplicate and sanitized GeoTracker files that concealed contamination; and

(iii) failing to enforce expired stormwater and drainage permits related to the Site, RWQCB has contributed to the continued release and migration of hazardous waste.

D. EEC Environmental: By

(i) preparing misleading Phase I and Phase II assessments;

(ii) submitting forged and defective RAS forms and closure-supporting documents;

(iii) failing to include or disclose complete laboratory data and geophysical records; and

(iv) misrepresenting the status and location of Well W-4150 and subsurface anomalies, EEC has materially contributed to the improper management and disposal of hazardous waste and to the concealment of conditions that endanger human health and the environment.

E. Mercy House Living Centers, Inc.: By

(i) operating HBNC on a known contaminated Site;

(ii) conducting daily high-pressure washing of the thin asphalt cap, thereby mobilizing contaminated soil and dust; and

(iii) failing to implement reasonable measures to minimize resident exposure to contaminated media, Mercy House has contributed to the ongoing spread and exposure pathways of hazardous waste at the HBNC Site.

F. Mitsuru Yamada and DOES 1–100: By

(i) concealing historical information about the cesspool and subsurface hazards;

(ii) participating in property transfers and documentation that obscured known contamination risks; and

(iii) collaborating with other Defendants in the chain of ownership, development, and oversight, these Defendants have contributed to conditions under which hazardous wastes remain in place, un-remediated, and accessible to residents and the environment.

123. The contamination at the Site presents an imminent and substantial endangerment to human health and the environment. The endangerment is "imminent" because the threat of harm is present and ongoing. It is "substantial" due to:

(a). contaminant concentrations up to 49 times above safe levels;

(b). an inadequate cap with active particulate mobilization;

(c). an unsealed pathway to groundwater; and

(d). direct exposure of residents. (Exhibits 1–3, 7, 11, 30–31).

124. Defendants' actions—including the inadequate asphalt cap, failure to seal Well W-4150, demolition of a lead-paint structure without abatement, and daily high-pressure washing—have exacerbated the endangerment.

125. Defendants' concealment of contamination, falsification of regulatory documents, circumvention of DTSC oversight, and operation after the zoning-triggered nullification of the environmental closure have prevented proper remediation and allowed the imminent and substantial endangerment to persist.

COUNT II: Violation of RCRA – Illegal Disposal of Hazardous Waste

(42 U.S.C. § 6972(a)(1)(A))

126. Plaintiff incorporates paragraphs 1–125 as if fully set forth herein.

127. RCRA § 6972(a)(1)(A) authorizes civil actions against any person alleged to be in violation of any permit, standard, regulation, condition, requirement, or order relating to the handling, storage, treatment, transportation, or disposal of solid or hazardous waste.

128. Defendants violated RCRA by disposing of hazardous waste without a

permit and in violation of applicable federal and state regulations, including but not limited to:

(a). demolishing a lead-paint structure without required Title X abatement (Exhibits 2, 9, 18);

(b) failing to properly seal Well W-4150 (Exhibits 3, 7);

(c). installing an inadequate asphalt cap over contaminated soil (Exhibits 30–31);

(d). allowing high-pressure washing to mobilize contaminants;

(e). removing posted hazard warnings prior to occupancy (Exhibits 1–2);

(f.) failing to implement institutional controls or a Land Use Covenant; and

(g.) continuing operation after the 2023 zoning change nullified the environmental closure.

129. Defendants' actions constitute ongoing illegal disposal because contaminants continue to migrate, mobilize, and expose residents and the surrounding environment.

130. The failure to produce complete and verifiable environmental data—including missing laboratory attachments, absent metadata, and incomplete geophysical records (Exhibits 41–42)—constitutes a violation of regulatory requirements governing the handling, reporting, and documentation of hazardous waste.

These deficiencies prevented lawful oversight and contributed to ongoing illegal disposal.

COUNT III: Violation of Title VI of the Civil Rights Act of 1964

(42 U.S.C. § 2000d)

131. Plaintiff incorporates paragraphs 1–130 as if fully set forth herein.

132. Title VI prohibits discrimination on the basis of race, color, or national origin by any program or activity receiving federal financial assistance.

133. Defendants, including the City of Huntington Beach, OCHCA, RWQCB, and Mercy House, receive federal financial assistance, including CARES Act funds used to acquire and operate HBNC (Exhibits 8, 24–25).

134. HBNC's population is disproportionately BIPOC, low-income, and disabled.

135. Defendants intentionally sited HBNC on a contaminated parcel, concealed hazards, and provided substandard environmental protections compared to those provided to non- BIPOC, non-majority disabled populations in the same city, including City Hall employees and stakeholders (Exhibits 8, 32–33, 37). Defendants were aware of the contaminated condition of the Site and of the demographics of the residents who would be compelled to live there, yet knowingly chose not to afford HBNC residents equal environmental safeguards.

136. RWQCB staff explicitly denied that the Site was located in a disadvantaged community, thereby withholding enhanced protections available under SB 535 (Exhibit 20). This denial, made despite readily available demographic and environmental-justice data, reflects deliberate indifference to the known and predictable discriminatory effects of Defendants' actions.

137. Defendants' actions and omissions—including

(a) selecting and maintaining contaminated Site for a predominantly BIPOC, low-income, and disabled population;

(b) concealing hazards and falsifying or manipulating environmental records;

(c) stripping HBNC residents of warnings and protections while extensively protecting non-shelter City stakeholders; and

(d) resisting environmental-justice designations that would have triggered higher protections—were undertaken with discriminatory intent and/or with deliberate indifference to the rights of a protected class. These actions have resulted in intentional discrimination and disparate treatment in violation of Title VI.

COUNT IV: Declaratory and Injunctive Relief

138. Plaintiff incorporates paragraphs 1–137 as if fully set forth herein.

139. An actual controversy exists between Plaintiff and Defendants regarding the legality of Defendants' actions, the ongoing endangerment at the Site, and the discriminatory impacts of Defendants' conduct.

140. Plaintiff seeks a judicial declaration that:

(a). Defendants violated RCRA and Title VI;

(b). the conditions at the Site constitute an imminent and substantial endangerment;

(c). the 2020 "Case Closed" certification was ultra vires, void ab initio, and is nullified by the 2023 zoning change; and

(d). the Site must undergo full DTSC oversight and lawful remediation.

141. Plaintiff seeks injunctive and other equitable relief requiring Defendants to:

(a). conduct a full Site investigation under DTSC oversight;

(b). implement lawful remediation and monitoring;

(c). seal or properly abandon Well W-4150;

(d). install institutional controls and a Land Use Covenant;

(e). establish and fund a court-supervised, equitable medical monitoring program for Plaintiff and other exposed residents, as a form of injunctive relief designed to detect and mitigate latent diseases caused by exposure;

(f). implement nondiscriminatory environmental protections; and

(g). suspend all residential development until lawful cleanup is complete.

VIII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and grant the following relief:

142. A declaration that Defendants' actions and omissions constitute violations of RCRA, 42 U.S.C. § 6972(a)(1)(B), by contributing to conditions that present an imminent and substantial endangerment to health or the environment.

143. A declaration that Defendants violated RCRA, 42 U.S.C. § 6972(a)(1)(A), by engaging in the illegal disposal, handling, and management of hazardous waste without required permits, oversight, or compliance with applicable regulations.

144. A declaration that Defendants' actions and omissions resulted in intentional discrimination, disparate treatment, and deliberate indifference in violation of Title VI of the Civil Rights Act of 1964, 42 U.S.C. § 2000d, and its implementing regulations.

145. A declaration that the August 21, 2020 "Case Closed" certification (IC Case No. 20IC002) is ultra vires, void ab initio, and nullified by the 2023 zoning change to high-density residential use.

146. An injunction requiring Defendants to immediately cease all activities that contribute to the ongoing release, migration, or mobilization of hazardous substances at the Site.

147. An injunction compelling Defendants to conduct a comprehensive Site investigation under DTSC oversight, including but not limited to:

(a). soil, soil-gas, groundwater, and vapor intrusion testing;

(b). historical source identification;

(c). subsurface structure mapping; and

(d). risk assessment consistent with state and federal standards.

148. An injunction requiring Defendants to implement a lawful, DTSC-approved remediation plan sufficient to eliminate the imminent and substantial endangerment.

149. An injunction requiring Defendants to properly seal, abandon, or remediate Well W-4150 in accordance with state law and DTSC/RWQCB standards.

150. An injunction requiring Defendants to install and maintain appropriate

institutional controls, including a recorded Land Use Covenant, long-term monitoring and reporting, engineering controls, and access restrictions.

151. An injunction requiring Defendants to establish, fund, and maintain a court-supervised, equitable medical monitoring program for Plaintiff and other exposed HBNC residents, as a form of injunctive relief tailored to detect, diagnose, and mitigate latent and progressive diseases caused by exposure to Site contaminants.

152. An injunction requiring Defendants to implement nondiscriminatory environmental protections and ensure future siting, remediation, and oversight decisions comply with Title VI.

153. An order requiring Defendants to preserve all documents, communications, data, and electronically stored information related to the Site, the oversight process, and HBNC.

154. An award of costs, including reasonable litigation expenses, expert fees, and any other costs authorized under RCRA and Title VI.

155. Such other and further equitable and injunctive relief as the Court deems just, equitable, and proper.

IX. VERIFICATION

I, Jesse Knabb, am the Plaintiff in this action. I have read the foregoing Verified Complaint and know its contents. The facts stated therein are true to the best of my knowledge, information, and belief, and as to those matters stated on information and belief, I believe them to be true.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on February 14, 2026, in Midway City, California.

/s/ Jesse Knabb

Jesse Knabb, Plaintiff In Pro Per

X. INDEX OF EXHIBITS

The following exhibits are incorporated by reference and attached. Each is cited in the factual allegations and claims above:

- Exhibit A – Pre-Suit Notice Letters (RCRA and Title VI)
- Exhibit 1 – April 2020 Soil Sampling Results (Hexavalent Chromium, Lead, Arsenic, OCPs)
- Exhibit 2 – Photographs of Posted Hazard Warnings (Lead, Pesticides, Chromium)
- Exhibit 3 – 1947 Survey Map Identifying "Iron Tank" and Well W-4150
- Exhibit 4 – Historical Aerial Photographs of Site
- Exhibit 5 – July 7, 2020 Revised RAS Forms (Parcel Consolidation)
- Exhibit 6 – April 30, 2020 Emails Between OCHCA and RWQCB (Bypass of DTSC Referral)
- Exhibit 7 – OCHCA Records Regarding Well Abandonment Requirements
- Exhibit 8 – City Financial Records (LMIHAF Funds, Escrow Deadlines)

- Exhibit 9 – Grant Deed for 17631 Cameron Lane (Executed April 3, 2020; Recorded August 19, 2020)
- Exhibit 10 – City Demolition Records for 1947 Lead-Paint Residence
- Exhibit 11 – Plaintiff's Medical Records (Exposure-Consistent Findings)
- Exhibit 12 – OCHCA "Case Closed" Certification (August 21, 2020)
- Exhibit 13 – OCHCA Technical Directives and Oversight Notes
- Exhibit 14 – RWQCB Correspondence Regarding Oversight Authority
- Exhibit 15 – EEC Phase I ESA (Misrepresentations and Omissions)
- Exhibit 16 – EEC Phase II ESA Sampling Data
- Exhibit 17 – EEC Geophysical Survey (Missing Raw Data)
- Exhibit 18 – Photographs and Video Footage of Demolition and Soil Disturbance
- Exhibit 19 – City Contract with EEC for "Environmental Construction Oversight"
- Exhibit 20 – RWQCB Email Denying SB 535 Disadvantaged Community Status
- Exhibit 21 – City-OCHCA Communications Regarding Cleanup Goals

- Exhibit 22 – OCHCA Internal Notes on Parcel Misidentification
- Exhibit 23 – RAS Forms Containing Forged and Non-Authentic Signatures
- Exhibit 24 – CARES Act Funding Documentation
- Exhibit 25 – HBNC Operational Funding Records
- Exhibit 26 – EEC Contract Amendments and Scope of Work
- Exhibit 27 – EEC Invoices and Work Logs
- Exhibit 28 – City Emails Regarding Escrow Deadlines and Pressure on OCHCA
- Exhibit 29 – OCHCA Emails Regarding Cleanup Timeline
- Exhibit 30 – City Communications Regarding Asphalt Cap Installation
- Exhibit 31 – Photographs of Asphalt Cap Deterioration
- Exhibit 32 – OCHCA 2022 Correspondence Regarding "No Further Action" Letters
- Exhibit 33 – OCHCA Guidance on Methane Monitoring and Institutional Controls
- Exhibit 34 – OCHCA CPRA Emails Showing Pre-Submission Coordination with EEC

- Exhibit 35 – OCHCA CPRA Emails Showing Edits to RAS Forms
- Exhibit 36 – OCHCA CPRA Emails Showing Recommendations Outside Jurisdiction
- Exhibit 37 – City Emails Showing Real Estate Deadlines Driving Oversight Decisions
- Exhibit 38 – April 22, 2020 Email: "I need the site closure letter before May 31st..."
- Exhibit 39 – Additional Supporting Documents (Maps, Photos, Notes)
- Exhibit 40 – Emergency Facility Use Agreement (April 20, 2020)
- Exhibit 41 – Eurofins Laboratory Communications and Missing Attachments
- Exhibit 42 – Subsurface Surveys Geophysical Report (Missing Raw Data)
- Exhibit 43 – EEC VP David Bernier, PG, emailed Laura Holder asking: "Did the geophy company do a report?"
- Exhibit 44 – OCHCA's Tamera Escobedo email on July 22, 2020 regarding "Limited pothole excavation took place. No debris was observed."
- Exhibit 45 – EEC "Additional Assessment Report, 17642 Beach Blvd" statement of metal debris and excavation on July 22, 2020.

- Exhibit 46 – Michael Drive storm drain project 1996
- Exhibit 47 – 17631 Cameron Parcel description with easement
- Exhibit 48 – Land Divide "Board of Zoning Adjustments"
- Exhibit 49 – Wrong APN for 17631 Cameron Lane "Site Summary and Recommendations for 17631 Cameron Lane" dated May 21, 2020.